

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #8	CCRB Case #: 201605921	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/05/2016 3:00 PM	Location of Incident: Opposite of § 87(2)(b), police vehicle, 30th Precinct stationhouse, and Manhattan Court	Precinct: 30	18 Mo. SOL 10/5/2017	EO SOL 10/5/2017	
Date/Time CV Reported Wed, 07/06/2016 6:00 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Fri, 07/08/2016 1:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Justin Mcknight	22630	953089	030 PCT
3. POM Steven Moran	02932	947275	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Opposite of § 87(2)(b) in Manhattan, officers strip-searched § 87(2)(b)	
B. Officers	Abuse: While in a police vehicle, officers threatened § 87(2)(b) with the use of force.	
C. POM Justin Mcknight	Force: Police Officer Justin Mcknight used physical force against § 87(2)(b)	
D. POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	
E. Officers	Force: At the 30th Precinct stationhouse, officers used physical force against § 87(2)(b)	
F. Officers	Force: At the Manhattan Criminal Courthouse, officers used physical force against § 87(2)(b)	

Case Summary

On July 6, 2016, § 87(2)(b) mailed a letter, dated July 1, 2016, from the Otis Bantum Correctional Center at Rikers Island. The complaint was received by CCRB on July 8, 2016. On July 12, 2016, § 87(2)(b) was identified as presently incarcerated. § 87(2)(b) [§ 86(1)(2)&(4)&(5)&(6)&(7)] On July 12, 2016, the undersigned contacted Legal Aid of Manhattan and identified § 87(2)(b) s attorney as § 87(2)(b). Callback messages were left to an automated server on July 12, 2016 and July 14, 2016. On July 14, 2016, § 87(2)(b) called back the undersigned and stated that she would need to check in with her manager regarding CCRB policy. § 87(2)(b) also said that she had been with § 87(2)(b) during his arraignment and would also see if she could provide a witness statement. On July 20, 2016 and July 25, 2016, the undersigned attempted to contact § 87(2)(b). Callback messages were left to an automated server. On July 25, 2016 a please call letter—which has not been returned by the US Postal Service—was also mailed to § 87(2)(b) at Legal Aid. On July 29, 2016, § 87(2)(b) called the undersigned and said that she was advising § 87(2)(b) against providing a statement that could be subpoenaed as his case was going to trial soon. The undersigned explained options for withdrawal and let § 87(2)(b) know that a future request could be made by her or § 87(2)(b) to reopen the case. She stated that she would be in touch. On August 1, 2016, the undersigned called § 87(2)(b) and a message was left to an automated server. On August 5, 2016, the undersigned called § 87(2)(b) again and let her know that the case would be closed § 87(2)(g). A search of the New York City Department of Corrections inmate lookup webpage on August 8, 2016 showed that § 87(2)(b) was still presently incarcerated. § 87(2)(g).

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date